

TENTATIVE RULINGS

July 20, 2026

	Case Name	Tentative
103	2023-01360760 Concord Investment Counsel Inc. vs. Depaolo & May Strategic Wealth LLC.	Motion to Be Relieved as Counsel of Record Steven C. Smith, Michael H. Cooper, and Smith LC’s Motion to be relieved as counsel for Plaintiff Concord Investment Counsel Inc. is denied. This matter was ordered to binding arbitration on July 1, 2024 and this action was stayed pending resolution of the arbitration proceeding. (ROA 37.) Accordingly, this motion should be brought before the arbitrator. <i>SWAB Financial, LLC v. E*Trade Securities, LLC</i> (2007) 150 Cal.App.4th 1181, 1200-1201. Moving party is ordered to give notice.
104	2020-01129890 Farah vs. Dearmin	1. Motion to Tax Costs of Nicholas Dutra 2. Motion to Tax Costs of Mitchell Zogob 3. Motion to Tax Costs of Therese Harris and Grace C. Dearmin 4. Order to Show Cause re: Dismissal <u>Motion to Tax Costs of Nicholas Dutra</u> Plaintiffs Michael P. Farah’s and The Eric Wyser Charitable Trust’s unopposed motion to strike or tax the costs memorandum filed by Defendant Nicholas Dutra is granted in part and denied in part. The right to recover costs of suit is determined entirely by statute. (Code Civ. Proc., § 1032 et seq.) Unless otherwise expressly prohibited by statute, a prevailing party is entitled to recover costs as a matter of right. (Code Civ. Proc., § 1032, subd. (b).) Code of Civil Procedure section 1033.5, subdivision (a) specifies cost items that are allowable, including filing and motion fees, deposition costs, and court reporter fees. (Code Civ. Proc., § 1033.5, subd. (a)(3).) Allowable costs “shall be reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation” and “reasonable in amount.” (Code Civ. Proc., § 1033.5, subd. (c).) If the items on their face appear to be proper charges, the verified memorandum of costs is prima facie evidence of their propriety, and the burden is on the party seeking to tax costs to show they were not reasonable or necessary. (<i>Ladas v. California State Auto. Assn.</i> (1993) 19 Cal.App.4th 761,774-776; <i>Jones v. Dumrichob</i> (1998) 63 Cal.App.4th 1258, 1266 [mere statements in points and authorities and declaration of counsel insufficient to rebut prima facie showing]; see <i>Wagner Farms, Inc. v. Modesto Irrigation Dist.</i> (2006) 145 Cal.App.4th 765, 777-778 [prevailing defendant properly awarded its photocopying costs which were supported by invoice from copy company, when plaintiffs failed to present any evidence showing that copying could have been done for less]. On the other hand, items that are properly objected to are put in issue, and the burden of proof is on the party claiming them as costs. (<i>Ladas v. California State Auto. Assn., supra</i>, 19 Cal.App.4th at pp. 774-776.)